

August 14, 2026
Dept. 9
Civil Tentative Rulings

1.	24CV0934	GLEN METCALF ET AL VS. YANASA, INC. ET AL
DEMURRER		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 14, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

Pursuant to Code of Civil Procedure § 430.10(e), Defendants, Yanasa, Inc., a domestic corporation, and Aziz Shariat, an individual ("Defendants"), demurrer to Plaintiffs', Glen Metcalf, an individual dba Metcalf Family Sports, Damon Maraschino, an individual, Neil Bernoudy, an individual dba Bernoudy Machining, Mountain Specialties, Inc., a domestic corporation, and Andrew Horvath, an individual, and Danny B. Hall, an individual ("Plaintiffs"), First Amended Complainant ("FAC"). On July 13, 2026, Plaintiffs filed an opposition.

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 ("If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort").

Based on the Declaration of Mark T. Lobre, counsel attempted to meet and confer with Plaintiffs prior to filing, but the dispute could not be resolved.

Background

Plaintiffs filed the FAC on June 12, 2026, alleging causes of action for 1) Breach of Lease Contract, Constructive Eviction; 2) Breach of Lease Contract, Mediation Provision; 3) Negligence; and 4) Breach of Unfair Competition Law (*Maraschino v. Defendants*).

Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff's ability to prove those allegations." (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank*, supra, 39 Cal.3d at p. 318.)

Discussion

Defendants demurrer to the first, second, and third causes of action, and thus the entire FAC with respect to Plaintiff Danny Brett Hall ("Plaintiff Hall") pursuant to Code of Civil Procedure § 430.10, as the complaint does not state facts sufficient to constitute a cause of action with respect to Plaintiff Hall.

1. First and Second Causes of Action – Breach of Lease Contract, Constructive Eviction and Breach of Lease Contract, Mediation Provision

Defendants argue that Plaintiff Hall is not a party to the subject contract and cannot enforce it, nor is he an intended beneficiary.

Code of Civil Procedure § 1159 provides that a contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it.

Third parties claiming the right to performance under an agreement made by others are classified as either intended or incidental beneficiaries of the contract. As explained in the Restatement Second of Contracts: "An incidental beneficiary is a beneficiary who is not an intended beneficiary." (Rest.2d Contracts, § 302(2), p. 440.) As used in Civil Code section 1559, the "word 'expressly' ... has now come to mean merely the negative of 'incidentally.'" (*Gilbert Financial Corp. v. Steelform Contracting Co.* (1978) 82 Cal.App.3d 65, 70, 145 Cal.Rptr. 448; accord, *Prouty v. Gores Technology Group* (2004) 121 Cal.App.4th 1225, 1232–1233, 18 Cal.Rptr.3d 178 (*Prouty*).) *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1022 [90 Cal.Rptr.3d 453, 468].

In *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 243 Cal.Rptr.3d 299, 434 P.3d 124 (*Goonewardene*) the Supreme Court established a three-part test to determine whether an individual or entity that is not a party to a contract may bring a breach of contract action against a party to the contract as a third party beneficiary. (*Id.* at p. 821, 243 Cal.Rptr.3d 299, 434 P.3d 124.) That test requires the third party to establish “**not only (1) that it is likely to benefit from the contract, but also (2) that a motivating purpose of the contracting parties is to provide a benefit to the third party, and further (3) that permitting the third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.**” (*Ibid.*; see *Wexler v. California FAIR Plan Assn.* (2021) 63 Cal.App.5th 55, 65, 277 Cal.Rptr.3d 398 (*Wexler*). “All three elements must be satisfied to permit the third party action to go forward.” (*Goonewardene*, at p. 830, 243 Cal.Rptr.3d 299, 434 P.3d 124.)

In applying this test, the court may look to “**the express provisions of the contract at issue, as well as all of the relevant circumstances under which the contract was agreed to.**” (*Goonewardene*, *supra*, 6 Cal.5th at p. 830, 243 Cal.Rptr.3d 299, 434 P.3d 124; see *Garcia v. Truck Ins. Exchange* (1984) 36 Cal.3d 426, 437, 204 Cal.Rptr. 435, 682 P.2d 1100 [considering evidence of the circumstances and negotiations of the parties to a contract to determine whether the parties intended the plaintiff to benefit from the contract]; *Neverkovec v. Fredericks* (1999) 74 Cal.App.4th 337, 349, 87 Cal.Rptr.2d 856 [same].) **In general, courts resolve doubts against the existence of a third party beneficiary.** (*Wexler*, *supra*, 63 Cal.App.5th at p. 66, 277 Cal.Rptr.3d 398; *Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268, 275, 83 Cal.Rptr.2d 702.) (emphasis added)

City of Oakland v. Oakland Raiders (2022) 83 Cal.App.5th 458, 472–473 [299 Cal.Rptr.3d 463, 473–474]

As an employee of Mountain Specialties, Plaintiff Hall was likely to benefit from the contract. However, the Court does not find that the FAC contains facts to support there was a motivating purpose of the contracting parties to provide a benefit to Plaintiff Hall, nor would permitting Plaintiff Hall to bring his own breach of contract action against Defendants be consistent with the objectives of the contract and the reasonable expectations of the contracting parties. Defendants’ demurrer to the First and Second Causes of Action is sustained with leave to amend.

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2. Third Cause of Action - Negligence

Defendants further allege that any negligence claim is barred because Defendants did not owe a duty to Plaintiff Hall, who was an employee of his father, Plaintiff Horvath.

Civil Code § 1714 establishes the general duty of ordinary care owed by every person to others. This duty is extended to landlords with respect to persons on the premises. *See Peterson v. Superior Court* (1995) 10 Cal.4th 1185, 1190 [43 Cal.Rptr.2d 836, 838, 899 P.2d 905, 907]; *Muro v. Superior Court* (1986) 184 Cal.App.3d 1089, 1098 [229 Cal.Rptr. 383, 389].

The Court finds that the FAC pleads facts sufficient to show Defendants owed a duty to Plaintiff Hall. Defendants' demurrer to the Third Cause of Action for Negligence is overruled.

TENTATIVE RULING #1:

DEFENDANTS' DEMURRER TO PLAINTIFFS' FIRST AND SECOND CAUSES OF ACTION IS SUSTAINED WITH LEAVE TO AMEND. DEFENDANTS' DEMURRER TO PLAINTIFFS' THIRD CAUSE OF ACTION IS OVERRULED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.